



File No.: EXP202301217

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On January 23, 2023, a notification of a personal data security breach was received in the Division of Technological Innovation of this Agency from the data controller EDISTRIBUCIÓN REDES DIGITALES, S.L. (hereinafter ERD or notifying entity) regarding the publication on an internet repository of access credentials to a database containing CUPS and consumption data. The summary of the data contained in the notification is as follows:

- Description of what occurred: (...)
- Data processor: ENGINEERING INGEGNERIA INFORMATICA S.P.A (hereinafter EII)
- Date of breach detection: January 20, 2023
- Date of breach initiation: January 10, 2023 (exact date)
- Date of breach conclusion: January 20, 2023
- Breach of confidentiality
- Number of affected individuals according to notification: 12,000,000
- Type of data according to notification: Basic data (e.g., name, surname, date of birth)
- They indicate that they have not communicated the breach to the affected individuals.
- They do not indicate affected individuals in other countries.

SECOND: On January 31, 2023, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD) to investigate EDISTRIBUCIÓN REDES DIGITALES, S.L., ENGINEERING INGEGNERIA INFORMATICA S.P.A, and ENGINEERING INGEGNERIA INFORMATICA SPAIN S.L., in relation to the following facts: Following the requests for information made to both the data controller ERD (on March 28, 2023, and July 28, 2023) and to the Spanish headquarters of the data processor EII (on July 28, 2023), the following documentation has been obtained:

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Written communication from ERD, dated April 21, 2023, which includes the following annexes:

- ☐ Document No. 1: Power of attorney (Pages 18-40)
- ☐ Document No. 2: First assessment report dated January 23, 2023, following the meeting held by the areas of ***AREA.1, ***AREA.2, ***AREA.3, ***AREA.4. (Pages 41-46)
- ☐ Document No. 3: Second assessment report of the breach dated February 1, 2023. (Pages 47-52)
- ☐ Document No. 4: Exchange of internal communications. (Pages 53-55)
- ☐ Document No. 5: Proof of submission of the security breach notification. (Pages 56-63)
- ☐ Document No. 6: Internal communication sent to the Data Protection Officer indicating that there was no record of access to the personal data included in the FTP server (Pages 64-65)
- ☐ Document No. 7: Procedure "Information Systems for Electrical Measurements. Files for the exchange of measurement information (Version 40, October 2022)" (Pages 66-317)
- ☐ Document No. 8: Email sent (...). (Pages 318-321)
- ☐ Document No. 9: Access credentials to the FTP server (Pages 322-323)
- ☐ Document No. 10: Sample of log files obtained as a result of the analysis of all accesses recorded on the FTP server between January 1 and January 24, 2023. (Pages 324-330)
- ☐ Document No. 11: Certification that no references to the publication of the data included in the FTP server were found on the internet during the period from January 1 to April 1, 2023. (Pages 331-332)
- ☐ Document No. 12: Confirmation from the service (...) that the data included in the FTP server has not been published on the internet. (Pages 333-335)
- ☐ Document No. 13: Copy of the Activity Register of the Data Controller, related to the processing

"MED - load curve marketers" (Pages 336-346)

☐ Document No. 14: Copy of the incident register from ERD where the incident "Information published in public repository on Github" is recorded (Pages 347-348)

☐ Document No. 15: Risk analysis conducted (Pages 349-353)

☐ Document No. 16: Impact Assessment of the processing where the personal data security breach occurred (Pages 354-490)

☐ Document No. 17: Software development, maintenance, and support contract with EII, dated December 24, 2018. (Pages 491-509)

☐ Document No. 18: Copy of the communications exchanged with EII.

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(Pages 510-514)

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Document from ERD, dated August 11, 2023, which includes the following annexes:

- Document number 1: Accreditation of training and awareness activities among EII employees, regarding the importance of complying with good practices that ensure the proper security of personal data, including protection against unauthorized or unlawful processing and against loss, destruction, or accidental damage. (Page 15)

- Document number 2: Complete risk analysis of the Exabeat system. (Page 20)

- Document number 3: Policy no. 1097 "Behavioral Standards for Digital Persons." (Page 21)

- Document number 4: Annex IX: Manual on Security Incident Management that is part of Organizational Procedure 2393 for the protection of personal data. (Page 53)

- Document number 5: Organizational Procedure 2484 for monitoring the implementation of corrective measures associated with security incidents. (Page 70)

- Document number 6: Evidence of the initiation of the security incident analysis process, once the impact on personal data was detected and all necessary information was gathered for the proper assessment of the situation and its potential effects. (Page 76)

- Document number 7: Risk assessments regarding the rights and freedoms of the affected Data Subjects. (Page 78)

- Document number 8: Security incident log. (Page 89)

- Document number 9: Proof of notification to the Spanish Agency for Data Protection of the security breach. (Page 108)

- Document number 10: Organizational procedure 36: Development of Solutions and Management of Deliveries (hereinafter "OP36") that describes the delivery, improvement, or repair of IT solutions, ensuring comprehensive coverage of the overall life cycle of the developed software, including delivery management activities, both from the perspective of applications and infrastructures. (Page 190)

- Document number 11: Example of the availability of internal regulations through an internal network called "Intranet" for access by internal employees of the business group to which ERD belongs. (Page 272)

- Document number 12: Invitations to training sessions provided to suppliers related specifically to compliance with OP36 of the business group to which ERD belongs. (Page 274)

- Document number 13: List of repositories that ERD allows EII to use. (Page 281)

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Document from EII, dated August 17, 2023, which includes the following annexes:

- Document number 1: RGP01_0_Regolamento_uso_risorse_aziendali. (Page 7)

- Document number 2: Communication channel e-mail. (Page 30)

- Document number 3: ISM04 Policy Security IT Infrastructure Group. (Page 34)

- Document number 4: ISM04_e Group IT Infrastructure ***AREA.1 Policy. (Page 41)

- Document number 5: ISM04A01 Measures and Controls Network Protocols. (Page 48)

- Document number 6: ISM04A01_e ***AREA.1 Measures and Controls Network Protocols. (Page 54)

- Document number 7: Employee portal screenshots with EXABEAT information. (Page 59)

- Document number 8: Procedures for Deployment. (Page 61)

- Document number 9: Declaration-08-23. (Page 77)

- Document number 10: Employee Regulations_ENGINEERING. (Page 79)

- Document number 11: Infographic Management Breaches_ENGINEERING INGEGNERIA INFORMATICA SPAIN, SL. (Page 92)
- Document number 12: Infographic Procedure Rights_ENGINEERING INGEGNERIA INFORMATICA SPAIN, SL. (Page 94)
- Document number 13: Infographic Data Protection Policy_ENGINEERING INGEGNERIA INFORMATICA SPAIN, SL. (Page 96)
- Document number 14: Certificate Prodact Compliance GDPR_ENGINEERING INGEGNERIA INFORMATICA SPAIN, SL. (Page 98)
- Document number 15: Employee Regulations_ENGINEERING_IS. (Page 100)

Regarding the company

The notifying entity ERD is a limited liability company of Spanish nationality. It is a large subsidiary company with 2,562 permanent employees and 53 non-permanent employees, and a sales volume of more than 1,000,000,000 euros, belonging to the Economic Group: ENEL SPA - ITALY.

ERD is a company whose activity corresponds to the distribution of electrical energy.

ERD has Amazon AWS as a provider and EII as a data processor.

- Amazon Web Services (hereinafter AWS) is a cloud services platform that provides a variety of infrastructure services, including storage, databases, etc.
- EII is the parent company of a group of engineering specialized in IT engineering services. The group is headquartered in Spain through the company ENGINEERING INGEGNERIA INFORMATICA SPAIN, S.L.

GitHub is a platform for hosting projects (source code of applications and tools).

Regarding the chronology of events. Actions taken to minimize adverse effects and measures adopted for final resolution.

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The following is a chronological and detailed description of the events surrounding the Breach along with the evidence provided:

. - January 10, 2023:

(...).

. - January 11, 2023:

- The Github repository is deleted.

- (...).

. - January 12-17, 2023: (...).

. - January 17, 2023: (...).

. - January 17-20, 2023: (...).

It is confirmed that the incident occurred as a result of human error.

. - January 20, 2023:

- It is detected that the FTP server was used to share information between ERD and the marketing companies, which included the CUPS and the hourly load curves of the supply points located in the ERD network.

- Work begins to determine the implications of the publication of such information included on the FTP server and to analyze the security measures that should be adopted to mitigate the possible effects arising from such publication.

. - January 23, 2023:

- An assessment of the incident is carried out. (Assessment provided)

- Notification of the breach.

. - January 25, 2023:

- Completion of the reset of the compromised passwords that were included on the FTP server.

- Analysis of all access logs to the affected FTP server: it is concluded that there is no evidence that access to the personal data included on the FTP server occurred.

. - February 1, 2023:

- Second assessment of the incident (Assessment provided)

- Notification from AEPD: the breach is incorporated into the notification register.

After reviewing the reports prepared by the DPD, the internal communications between the DPD team and the various areas involved in resolving the Breach, the email exchanges, the logs, and the documentation provided, the chronological facts outlined above are corroborated.

ERD indicates the measures in response to the incident and the solutions implemented, listed in the incident assessments by the DPD that have been provided as evidence:

(...)

In the same way, in parallel by EII:

. (...).

Regarding the analysis of the access logs to the allegedly compromised FTP server, ERD specifies in its first response document:

(...)

The access credentials provided documentarily have been cross-checked with the list of logs of all accesses recorded on the FTP server between January 1 and January 24, 2023, and it has been confirmed that the accesses were internal.

Regarding the causes that made the breach possible

As ERD specifies in its response document, on January 10, 2023, one of the novice programmers from EII "made a copy of part of the source code of EXABEAT, with the aim of familiarizing himself with the operation of said system by making modifications and testing the EXABEAT software without interfering with the operation of the 'production' version."

[...]

"It is worth noting that (...).

Additionally, there are repositories like Github, which can be used by anyone to host personal projects. These public repositories can also be configured with both restricted access and public access."

The EII programmer "made a copy of the source codes in a Github repository that he inadvertently left configured with public access, making the source code of EXABEAT visible to third parties. In this regard, it should be noted that, as part of a source code, (...).

(...)

For its part, EII indicates:

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"The security incident that occurred consisted of human error, due to the failure to comply with company regulations, which (among others) prohibit the use, during work functions, of personal use software and services. In any case, once the incident was known, the company immediately implemented the necessary measures to end the incident, (...)"

Consulted EII regarding the reason why the novice programmer used a public repository such as Github instead of using the protected work repositories available to EII for making test modifications, EII explains that: (...)

On the other hand, ERD (...) provides the list of repositories that ERD allows EII to use, (...).

Regarding the affected data

(...)

ERD provides the Procedure "Information Systems for Electrical Measurements. Files for the exchange of measurement information (Version 40, October 2022)."

Regarding the data processing agreement

The responsible party ERD provides a copy of the Software Development, Maintenance, and Support Contract with EII, in which Clause 9 specifies the processing of personal data, with this entity acting as

the responsible party and EII as the data processor.

The object of the contract is the provision of development and maintenance services for the applications of ENEL's systems and processes with coverage in Spain.

(...)

The obligations of the Data Processor establish:

- Sections a) and b) - "Use personal data only for the purpose of the contract and Ensure that the persons in charge of processing do so in accordance with the instructions of the Data Controller" (GDPR art. 28.3.a)
- Section e) - "Not subcontract with any third party without the prior written authorization of the Data Controller"
- Sections g) and h) - "Maintain the duty of confidentiality regarding personal data to which they have had access by virtue of the contract, even after its execution ends and Ensure that the persons authorized to process personal data commit, expressly and in writing, to respect confidentiality and comply with the corresponding security measures, of which they must be duly informed" (GDPR art. 28.3.b)
- Section q) - Reference to security measures (GDPR art. 28.3.c)
(the underlining has been added by the Agency)

Regarding the security measures implemented

(...)

EII provides the document "RGP01_0_Regolamento_uso_risorse_aziendali" (Rules for the use of company resources) aimed at regulating all activities and behaviors related to work devices and access to available resources on the network (data connections, repositories, intranet and internet network, email, fixed and mobile telephony).

Among others, this document establishes the following (The translation from Italian, the base language of the document, is added):

. - (...)

[...]"

Training and awareness activities among EII employees have also been provided, regarding the importance of complying with good practices that ensure the adequate security of personal data, including protection against unauthorized or unlawful processing and against loss, destruction, or accidental damage.

- 1.- Conducting an E-learning Training on "Basic GDPR Awareness" by all employees
- 2.- Providing various infographics on security breaches and privacy policy on the corporate intranet.
- 3.- Signing a document called Data Protection Regulations for EII staff and collaborators, which includes information on data protection, the duty of confidentiality and secrecy, and the mandatory security measures for all workers/collaborators. EII states that this document is updated annually.

(...)

ERD provides the risk analysis conducted, in which the security measures adopted in the EXABEAT system related to the incident are satisfactorily evaluated, and the state of compliance with aspects related to the processing of CUPS data and the hourly load curve of the clients is noted.

ERD also provides the Impact Assessment of the processing where the security breach of personal data occurred, as well as the Register

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of Treatment Activities and the Incident Register where the incident "Information published in public repository on Github" has been recorded.

(...)

The contract is reviewed, and the Data Processor confirms the obligation of confidentiality and commitment to secrecy.

(...)

An annex is provided with the communication sent to the staff regarding this matter, which contains emails and screenshots from the intranet informing about cybersecurity issues and notifying about the security incident that occurred. It also provides the security policies in both Italian and English.

(...)

Regarding the notification after 72 hours

ERD indicates that, as outlined in the chronological order of events, it was on January 20, 2023, when it was detected that the FTP server, (...), which required an assessment of the impact on the rights and freedoms of the data subjects.

Prior to that date, it had only been determined that a copy of the source code of ERD's EXABEAT application had been published in the Github repository, without being able to ascertain at that time whether such unauthorized publication had resulted in access to personal data and a risk to the rights and freedoms of the affected individuals.

ERD notified the personal data breach to the Technological Innovation Division of this Agency on January 23, 2023.

Regarding communication to the affected individuals

In the notification to this Agency regarding the confidentiality breach, ERD states that "the affected individuals will not be informed about the personal data breach."

ERD bases this decision on the assessment of the level of risk to the rights and freedoms of the individuals affected by the breach, according to the Guide for the notification of personal data breaches (May 2021), as specified in the incident assessments provided by the DPO as evidence:

Volume:

Records of 12.4 Million customers

5

Type of data

Non-sensitive data

1

Impact

External

6

Risk:

5 x (1 x 6)

30

The version of the guide indicates that any breach that simultaneously meets the following circumstances must be communicated to the affected individuals:

- Risk with a quantitative value greater than 40.
- In the presence of two qualitative circumstances (marked in the guide in yellow).

The Guide for the notification of personal data breaches, in its June 2021 version, states that:

"Communication to the affected individuals will not be necessary when:

- The data controller has taken appropriate technical and organizational measures that prevent the aforementioned risks, minimize harm to rights and freedoms, and/or make them reversible.
- The data controller has taken protective measures after the personal data breach that mitigate, either totally or partially, the possible impact for the affected individuals and ensure that there is no longer a possibility of the high risk to their rights and freedoms materializing. For example, by identifying and immediately implementing measures such as the revocation, cancellation, or blocking of compromised access credentials or digital certificates, or by restoring services and backups of data in such a way that no other personal data can be compromised.

The Communicate-Breach GDPR tool provides assistance to data controllers in making decisions regarding the obligation to notify affected individuals of a personal data breach."

Information about the recurrence of these events and the number of similar events that have occurred over time

ERD states that "in no case was the FTP server itself or the data it contained directly published on Github, (...). In any case, the data from the FTP server has not been published in external sources, nor has it been detected that third parties accessed this information.

The Security area of the Endesa Group has only recorded and documented one similar event due to an incident that occurred on April 30, 2018, which resulted in the publication of internal information files in a public repository on Github."

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), it is competent to

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to resolve these investigative proceedings, the Director of the Spanish Agency for Data Protection. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data by ERD.

ERD carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" as "all breaches of security that result in the accidental or unlawful destruction, loss or alteration of personal data transmitted, stored or otherwise processed, or unauthorized communication or access to such data."

In this case, there is a personal data security breach under the circumstances mentioned above, categorized as a confidentiality breach.

It should be noted that the identification of a security breach does not directly imply the imposition of a sanction by this Agency, as it is necessary to analyze the diligence of the controllers and processors and the security measures applied.

The security of personal data is regulated in Articles 32, 33, and 34 of the GDPR, which govern both the security of processing, the notification of a personal data security breach to the supervisory authority, and the communication to the data subject, respectively.

III

Security of Processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying likelihood and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which shall include, as appropriate, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data in a timely manner in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and

organizational measures to ensure the security of processing.

2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

In this case, at the time the security breach occurred, there is no evidence that ERD and EII did not have reasonable security measures in place based on the estimated potential risks.

The measures taken by ERD in response to the incident and the solutions implemented are considered adequate:

- (...)

In the same way, in parallel by the processor EII:

- – (...).

The breach occurred due to a human error by one of the novice programmers of the processor EII, who made a copy of the source code of EXABEAT (Centralized Management System for Measures) in a GitHub repository that had inadvertently been left configured with public access, making the source code of EXABEAT visible to third parties.

The source code of EXABEAT (...), so initially any potential external access to that application is ruled out.

On January 20, 2023, it was detected that, among the published credentials, there are

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they are those of an FTP server that can be accessed from the internet and that contains the CUPS and the hourly load curves of the supply points located in the ERD network. The incident is assessed and reported to the AEPD on January 23, 2023.

ERD has provided evidence that all accesses to the allegedly compromised FTP server were carried out from internal environments of the ERD business group as a result of the usual and lawful use of the systems and that, in no case, was there unauthorized access or irregular use of the data included in the FTP server by third parties.

It has also provided proof that no references to the publication of the data included in the FTP server were found on the internet during the period from January 1 to April 1, 2023.

EII acknowledges that the security incident was due to human error, resulting from non-compliance with company rules.

It has been verified that EII's internal rules prohibit the use of personal software and services, and training and awareness activities among EII employees have been documented: Training on "Basic GDPR Awareness," provision of various infographics, and signing of the Data Protection Regulations for EII's workforce and collaborators, which includes information on data protection, the duty of confidentiality and secrecy, and the mandatory security measures for all workers/collaborators.

It has been confirmed (...) that the repositories that ERD allows EII to use are not public access repositories.

Consequently, there is no evidence that due diligence was not exercised once the security breach was known and that the measures adopted after the incident analyzed here were inadequate.

IV

Notification of security breach

Article 33 of the GDPR states the following:

"1. In the case of a personal data breach, the data controller shall notify the competent supervisory authority in accordance with Article 55 without undue delay and, where feasible, no later than 72 hours after becoming aware of it, unless it is unlikely that the personal data breach will result in a risk to the rights and freedoms of natural persons. If the notification to the supervisory authority does not take place within 72 hours, it shall be accompanied by the reasons for the delay.

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2. The processor shall notify the controller without undue delay of any personal data breaches of which it becomes aware.

3. The notification referred to in paragraph 1 shall, at a minimum:

a) describe the nature of the personal data breach, including, where possible, the categories and approximate number of data subjects affected, and the categories and approximate number of personal data records affected;

b) communicate the name and contact details of the data protection officer or another contact point where more information can be obtained;

c) describe the likely consequences of the personal data breach;

d) describe the measures taken or proposed by the controller to remedy the personal data breach, including, where appropriate, the measures taken to mitigate any possible adverse effects.

4. If it is not possible to provide the information simultaneously, and to the extent that it is not possible, the information shall be provided in phases without undue delay.

5. The controller shall document any personal data breach, including the facts relating to it, its effects, and the remedial measures taken. This documentation shall enable the supervisory authority to verify compliance with the provisions of this article."

In this case, it is recorded that ERD suffered a personal data breach on January 10, 2023, which was detected on January 20, 2023, and notified to this Agency 3 days later.

Consequently, the entity responsible for data processing complied with the provisions of Article 33 of the GDPR by notifying within the established timeframe after detecting the security breach.

V

Communication of a personal data breach to the data subject

The communication of a personal data breach to the data subject is regulated in Article 34 of the GDPR, which states:

"1. When a personal data breach is likely to result in a high risk to the rights and freedoms of natural persons, the controller shall communicate the breach to the data subject without undue delay.

2. The communication to the data subject referred to in paragraph 1 of this article shall describe in clear and plain language the nature of the personal data breach and shall contain at least the information and measures referred to in Article 33, paragraph 3, letters b), c), and d).

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3. Communication to the interested party referred to in paragraph 1 shall not be necessary if any of the following conditions are met:

a) the data controller has implemented appropriate technical and organizational protection measures, and these measures have been applied to the personal data affected by the personal data breach, in particular those that render the personal data unintelligible to any person not authorized to access them, such as encryption;

b) the data controller has taken further measures that ensure that there is no longer a likelihood of a

high risk to the rights and freedoms of the interested party referred to in paragraph 1;

c) it would involve a disproportionate effort. In this case, a public communication or a similar measure will be opted for, which informs the interested parties in an equally effective manner.

4. When the data controller has not yet communicated the personal data breach to the interested party, the supervisory authority, once it has considered the likelihood that such a breach entails a high risk, may require it to do so or may decide that one of the conditions mentioned in paragraph 3 is met. ERD has not communicated to those affected by the personal data breach. This decision is based on the assessment of the level of risk to the rights and freedoms of the natural persons affected by the breach; evaluations that have been carried out and provided, according to the Guide for the notification of personal data breaches (May 2021).

VI

Conclusion

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to EDISTRIBUCIÓN REDES DIGITALES, S.L., and to ENGINEERING INGENIERIA INFORMATICA SPAIN S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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